

HOUSE No. 2290

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for municipal flexibility in state housing mandates.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/17/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>

HOUSE No. 2290

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2290) of Bradley H. Jones, Jr. and others that municipalities are authorized to petition for exemption from compliance with certain state-imposed housing mandates. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for municipal flexibility in state housing mandates.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40A of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding the following section:-

3 Section 18. Notwithstanding any general or special law to the contrary, a municipality
4 may petition the executive office of housing and livable communities for an exemption from
5 compliance with a state-imposed housing mandate, including but not limited to section 3A of this
6 chapter. The petition shall include evidence demonstrating that compliance would: (a) impose an
7 undue financial or administrative burden; (b) exceed the municipality's capacity for housing,
8 infrastructure, or services; or (c) conflict with existing local priorities or zoning regulations.

9 The department of housing and community development shall promulgate regulations for
10 reviewing and approving such petitions, including timelines and criteria for exemptions.